

Andhra Pradesh Mineral Bearing Lands (Infrastructure) Cess Rules, 2005

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State of Andhra Pradesh - Act

Andhra Pradesh Mineral Bearing Lands (Infrastructure) Cess Rules, 2005

ANDHRA PRADESH

India

Andhra Pradesh Mineral Bearing Lands (Infrastructure) Cess Rules, 2005

Rule ANDHRA-PRADESH-MINERAL-BEARING-LANDS-INFRASTRUCTURE-CESS-RULES-2005 of 2005

Published on 12 September 2005

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Andhra Pradesh Mineral Bearing Lands (Infrastructure) Cess Rules, 2005

Published vide Notification No. G.O. Ms. No. 250, Industries & Commerce (M-I), dated 12.09.2005

Last Updated 16th September, 2019

No. G.O. Ms. No. 250. - In exercise of the powers conferred by sub-section (1) of Section 8 of the Andhra Pradesh Mineral Bearing Lands (Infrastructure) Cess Ordinance, 2005, (Ordinance 22 of 2005) the Government of Andhra Pradesh hereby makes the Andhra Pradesh Mineral Bearing Lands (Infrastructure) Cess Rules, 2005.

1.

Short title and Commencement.

(1)

The rules may be called the Andhra Pradesh Mineral Bearing Lands (Infrastructure) Cess Rules, 2005.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless the context otherwise requires:-

(a)

"Ordinance" means the Andhra Pradesh Mineral Bearing Lands (Infrastructure) Cess Ordinance, 2005.

(b)

"Form" means the Form appended to these Rules;

(c)

"Schedule" means the Schedule appended to the Ordinance.

3.

Prescribed Officer.

- The Assistant Director of Mines and Geology or any other officer authorized by the Director of Mines and Geology shall be the prescribed officer, under sub-section (1) of Section 4 of the Ordinance.

4.

Notice of demand.

- The notice of demand of cess referred to in sub-section (2) of Section 4 of the Ordinance, shall be in the Form appended to these rules. Every notice of demand shall be issued in Form-A under the signature of the prescribed officer. The service of the notice shall be effected by delivering or tendering it to the holder of a mining lease concerned or in his/ her absence to his/her agent or to any adult member of his/her family; or where it is not practicable to so deliver or tender, by sending it to him to his last known place of residence by registered post acknowledgement due.

5.

Appeal.

- An appeal against any orders or notice of demand passed/issued by the prescribed officer under rule 4 shall lie to the Director of Mines and Geology in Form-B in triplicate within the period of 60 days from the date of communication of such order/notice of demand to the party aggrieved and an appeal against an order of the Director of Mines and Geology shall lie to the Government in like manner. Every said appeal shall be accompanied by a Challan of Rs. 500/- paid into the Government treasury account in any branch of State Bank of India/State Bank of Hyderabad conducting the treasury business in the head of account to be specified in this regard. The revision petitioner shall also enclose the Form-D along with the revision application.

6.

Revision.

- Any revision against the orders in appeal shall be made in triplicate in Form-C within the period as specified under Section 6 of the ordinance together with a fee of Rs. 1000/- by way of challan paid into the Government treasury account in any branch of State Bank of India/State Bank of Hyderabad conducting the treasury business in the head of account to be specified in this regard. The revision petitioner shall also enclose the Form-D along with the revision application.

7.

Maintenance of accounts.

- Every holder of mineral bearing land having Prospecting Licence/Mining Lease/ Quarry Lease shall maintain a true and correct account of production and dispatches of the minerals specified in the Schedule to this Ordinance, the amounts of Cess paid therefor, as notified from time to time in Form-D.

Form A

Notice of Demand

(See Rule 4)

To

Take notice that you have been assessed under the Andhra Pradesh Mineral Bearing Lands (Infrastructure) Cess Ordinance, 2005 (Ordinance 22 of 2005), to a Cess of Rs. _____ (in words) (Rupees only) for the period _____. The Cess shall be paid within thirty days from the date of service of this notice, by a remittance into a government Treasury failing which the amount of cess will be recovered as an arrear of land revenue.

Prescribed Officer.

Form - B

(Should be submitted in triplicate)

Application for appeal under Rule-5

1. Name and address of individual(s), firm or company, applying.
2. Profession of individual(s), firm or company.
3. No. and date of order of the ADMG/DDM&G/JDMG/DMG. Against which the appeal application is filed (copy attached).
4. Minor Mineral or Minor Minerals/Major Mineral or Major Minerals for which the appeal application filed.
5. Details of the area in respect of which the appeal application filed.

District

Mandal

Village

Location of mine

6. Details of the mineral/minerals and the quantity for which demand has been raised.

Name of the mineral/ Minerals

Quantity for which demand raised

Amount of demand raised

7. Whether application fee has been deposited in the manner prescribed in Rule 5 if so, the Treasury receipt in original should be attached.

8.

Whether the appeal application has been filed within time specified in Rule 5. If not, the reasons for not presenting it within the prescribed limit as provided for in rules.

9.

No, of copies of petitions/applications attached (Rule 5).

10.

Grounds of appeal.

11.

Form D to be enclosed to the application form.

12.

If the appeal application has been filed by the holder of Power of Attorney, the Power of Attorney to be attached.

Place:

Date:

Signature of the applicant

Form - C

(Should be submitted in triplicate)

Application for Revision under Rule-6

1. Name and address of individual(s), firm or company, applying.
2. Profession of individual(s), firm or company.
3. No. and date of order of the ADMG/DDM&G/JDMG/DMG. Against which the Revision application is filed (copy attached).
4. Minor Mineral or Minor Minerals/Major Mineral or Major Minerals for which the Revision appeal application filed.
5. Details of the area in respect of which the Revision application filed.

District

Mandal

Village

Location of mine

6. Details of the mineral/minerals and the quantity for which demand has been raised.

Name of the mineral/ Minerals

Quantity for which demand raised

Amount of demand raised

7. Whether application fee has been deposited in the manner prescribed in Rule 6 if so, the Treasury receipt in original should be attached.

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